Privacy Policy - Clime: NOAA Weather Radar Live

Last updated: 23 April 2024

We want to help you understand how Clime: NOAA Weather Radar Live (developer account: Mobile Heroes) processes your personal data, as well your options when it comes to managing it.

We at Bending Spoons S.p.A. ("**Bending Spoons**", "**we**", "**us**" and "**our**") have created this Privacy Policy to explain how we collect, use, disclose and otherwise process personal information collected by us through the use of our websites and applications on which this Privacy Policy is posted. Bending Spoons is the controller of your personal data.

This Privacy Policy applies to our websites and mobile applications, email notifications and any and all related services we may provide on which this Privacy Policy is posted, and our collection of information from our corresponding social media features and pages (each a "**Service**" and collectively, the "**Services**"). In addition to describing how we collect, use, disclose and otherwise process personal information, this Privacy Policy explains the rights and choices available to individuals with respect to their personal information.

California residents, please see **section 11** for more information on Your California Privacy Rights.
Mainland China residents, please see **section 12** for more information on Your Privacy Rights

1. INFORMATION WE COLLECT

We may obtain information about you in a variety of ways, including through your use of our Services, when you call, email or otherwise communicate with us (including through social media), or when you participate in events or other promotions.

The information that we collect, whether from you directly or automatically, may be considered personal information in certain jurisdictions or personal data under the European General Data Protection Regulation (the "**GDPR**"). Whenever we refer to personal information in this Privacy Policy, it means personal information or personal data as defined by applicable laws in the relevant jurisdiction.

These are the categories of personal information we collect, which may vary based on the Service being used:

1. Identifiers (e.g., real name, alias, unique personal identifier, online identifier, IP address, email address, account or other similar identifiers).

2. Personal Records (e.g., name, email address and username. Some personal information included in this category may overlap with other categories).

3. Internet or other similar network activity (e.g., information on a consumer's interaction with a website, application, or advertisement. See Information collected by Automated Means below for further details).

4. Geolocation data (e.g., physical location or movements).

5. Sensory data (e.g., audio, electronic, visual, or similar information).

6. Commercial information (e.g., information on a consumer's interaction with a website, application, or advertisement. See Information collected by Automated Means below for further details).

7. Inferences drawn from other personal information (e.g., profile reflecting a person's preferences, characteristics, and behavior).

2. SOURCES OF INFORMATION AND PURPOSES OF USE

Some of this information you provide to us and some we collect when you use our Services. We also may obtain information about you (including personal information) from our business partners, such as vendors, from previous owners and data controllers, and others.

You may choose not to provide some or all of your personal information to us but doing so may prevent us from providing our Services to you or limit our ability to provide you with the level of service that you would otherwise expect from us.

Information collected from you

The following are examples of the types of information we may collect directly from you:

- **Feedback:** From time to time, we may request your opinions, suggestions, or modification and improvement ideas ("Feedback") through surveys, or other similar requests. Any responses you provide are voluntary.

- **Name:** We may require your name to personalize your user experience.

- **Telephone number:** We may require your phone number for the technical provision of our Services to you.

- **Email address:** We may use your email address to communicate with you about the products and Services we offer, responding to requests, inquiries, comments, and suggestions and updating you with information about your account.

- **Username and/or PIN:** Certain of our Services use this information to facilitate your access to our website or mobile application and validate your login for your security.

- **Other User Information:** When using certain Services, you may choose to input or provide access to certain information about yourself, such as photographs, physical and health related information, or other information to enhance your experience of the Services we provide. This information will be stored on your device and will not be transmitted to us unless we notify you otherwise at the time of entering the information or granting access to the information.

- **Location Information:** When you use our Apps, we and our third-party partners may detect your general location (e.g., city and state). Additionally, we may also collect precise location data (e.g., longitude/latitude) but only when you consent within the app to sharing your precise location. Failure to provide such information will only prevent you from using the features of the app that require your precise location, or obtaining results that the service intends to provide you with based on your location information, but will not affect your use of other features. You authorize us and our third party partners to collect and use your location information. We may use location information to operate and enhance our service as well as customize the content, weather alerts, and

advertising we provide to you. For Apps with advertisements, if you have enabled location tracking, our trusted third party partners may also collect and use location data to customize advertisements shown to you. See Advertising Opt-Outs in Section 13 of this Privacy Policy for more information on how to opt-out of receiving relevant advertising.

- **Payment Information:** In the event you purchase products or Services directly from us, we, or a third party on our behalf, may collect payment card and other payment information, solely as required to process payment for such purchase.

- **Photograph:** Photograph or photographs you may provide to the Services.

Information collected by automated means ("Automated Information")

We may collect Automated Information through the use of cookies, and other technologies. In addition to cookies, such other technologies may include:

- "Pixel tags" (also known as a "clear GIFs" or "web beacons") which are tiny images (in most cases, typically just one-pixel) that can be placed on a Web page or in our electronic communications to you in order to help us measure the effectiveness of our content by, for example, counting the number of individuals who visit us online or verifying whether you've opened one of our emails or seen one of our Web pages.

- "HTML5" (the language some websites, such as mobile websites, are coded in) may be used to store information on your computer or device about your website usage activities and to help determine how our Services are being used by our visitors, how the services can be improved and to customize our Services for our users.

The above tracking technologies may be deployed by us or our service providers on our behalf.

Automated Information includes information such as:

- IP address

- Operating system used (for example: iOS)

- Internal resolution of the browser window

- Device type

- Country code

- Identifiers associated with technologies that may uniquely identify your device or browser (e.g., IMEI/UDID and MAC address)

- Dates and times of access

- IDFA

- Subscription information

- Latitude/longitude (if you allow location tracking)

- AdvertisingID (such as Google's AdvertisingID and Apple's IDFA, both of which are randomly generated numbers that you can reset by going into your device's settings)

- Adjust ID (this identifier lets us know where our users found our Services online, record user app events and optimize our advertising efforts)

We or our third-party service provider may assign you a unique identifier through automated means in order to match information collected from you through different means or at different times, (including both personal information and Automated Information) and to use such information as described in this Privacy Policy.

Information collected from integrated services.

We may obtain information, including personal information from third parties and sources that we integrate into our Services either for the provision of our Services or to facilitate your access to our Services such as described below.

You may be given the option to access or register for our Services through the use of your third-party social media account, such as Facebook or Google. If you select this option, your social media provider may make certain of your personal information available to us, such as your email address or other unique identifier or we may be asked to share certain information with such social media provider. If you choose to sign on through your third-party social media provider, you authorize us to collect your information from such provider and process it in accordance with this Privacy Policy and you also authorize us to share your information with your social media provider as necessary to permit you to access our Services using your social media account. We recommend that you review your social media provider's privacy policies carefully before using their service to connect to our Services.

3. HOW WE MAY USE YOUR PERSONAL INFORMATION

In addition to the purposes described above, we may use the information we collect for a variety of purposes, such as the following:

Service delivery and Customer support

- Maintaining or servicing accounts, providing customer service, operation our website and mobile applications; processing or fulfilling orders and transactions, verifying user information, processing payments;

- Communicating about the products and Services we offer, and responding to requests, inquiries, comments, and suggestions

Service improvement

- Conducting statistical analyses or other research activities to optimize our features and provide you with new ones;

- Understanding and evaluating how our Services and features perform with our users;

- Uncovering insights about usage in order to improve the Services and provide customers with enhanced features as well as inform our development of new features and products.

Profiling

- Measuring our advertising and marketing activity (e.g., measuring how a user was acquired).

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Troubleshooting

- Ensuring the quality and the proper functioning of our Services by analyzing, preventing, and correcting failures and bugs, and to prevent the illicit use or misuse of the Service.

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Targeted advertising and marketing

- Understanding our customer in order to more effectively market our Services
- Serving relevant advertisements, if applicable.

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Quality and Safety Maintenance and Verification

- activities related to improving the quality of the Services we provide, including upgrade or enhancement of the Services;
- verification or maintenance of the quality or safety of Services;
- Tracking and responding to quality and safety matters;
- Protecting our rights and property.

Compliance with legal obligations

- Complying with our legal obligations, including requests from public authorities, and proving that we have complied with them, such as in the event of a request from a public authority.

Defense

- Establishing, exercising, or defending our rights and those of our employees, and to carry out corporate transactions or operations. For example, your data may be processed in the event of bankruptcy, merger, acquisition, reorganization, and sale of assets or assignments, and the due diligence related to any such transactions.

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To perform the above functions, we may match information collected from you through different means or at different times, including both personal information and Automated Information, and use such information along with information obtained from other sources. We may also aggregate and/or de-identify any information that we collect, such that the information no longer identifies any specific individual. We may use, disclose and otherwise process such information for our own legitimate business purposes – including historical and statistical analysis and business planning – pursuant to this Privacy Policy and applicable privacy laws.

4. HOW WE MAY SHARE INFORMATION ABOUT YOU WITH OTHERS

Your personal data may be transmitted to trusted and reliable third parties. This happens only when there are lawful grounds for the transmission. We don't sell your data, including your images, to third parties under any circumstances.

The types of third parties to which your data may be transmitted are as follows:

- Third parties that carry out activities related to our business and operations. Such parties can operate either on our behalf as data processors (for example, IT or storage service providers) or as autonomous data controllers (for example, professional advisors providing advice or otherwise protecting and managing our business interests).

- Third parties that collect personal data about you to show personalized advertising (if you consent to the installing of tracking technologies). To learn more about their activities, see the third parties' privacy policies linked in the section In-app tracking technologies.

- For example, we may share certain information with companies like Facebook, Pinterest or Snapchat that allow us to create Custom or Lookalike Audiences. You may learn more about Facebook Lookalike Audiences here and about your off-Facebook activity and how to opt out of having such activity sent to Facebook here. You can also visit your Pinterest Settings and Snapchat Advertising Preferences to learn more about your privacy options on those platforms.

- We may also use Google Ads to advertise our products. You may opt-out of the use of this tracking technology by visiting Google's Advertising and Privacy page.

- Advisors and new owners, in the event that we carry out a corporate transaction or operation such as a merger, acquisition, reorganization, sale of assets or assignments, and as a part of the associated due diligence.

- Public, judicial, or police authorities, within the limits established by applicable laws.

- Other parties as necessary (for example, competent authorities), if we have reason to believe that your actions are inconsistent with our user agreements or policies or that you've violated the law, or if it's necessary to protect our rights, property, and safety or that of our users, the public, or others.

Additionally, we may share your personal data if it's required for the fulfillment of a legal obligation, or if you give us your consent to do so.

5. DO NOT TRACK DISCLOSURES

Some web browsers may transmit "do-not-track" signals to the websites with which the user communicates. Because of differences in how web browsers incorporate and activate this feature, it is not always clear whether users intend for these signals to be transmitted, or whether they even are aware of them. Because there currently is no industry standard concerning what, if anything, websites should do when they receive such signals, our Sites do not currently process or respond to "do-not-track" (DNT) settings in your web browser. If and when a final standard is established and accepted, we will reassess how to respond to these signals.

Certain third parties, such as ad networks, web analytics companies and social media and networking platforms, collect information about your online activities over time and across websites. These third parties may not change their tracking practices in response to DNT settings in your web browser and we do not obligate these parties to honor DNT settings. Information about how to opt out from your data being used by third parties can be found above under "Information collected by automated means."

6. SOCIAL MEDIA AND OTHER COMMUNICATIONS

We maintain a presence on several social networking and blogging platforms, such as Facebook, Instagram, Google, LinkedIn, Twitter, Snap, Tik Tok and Pinterest. We may incorporate some third-party social networking features into our Services (including, allowing users to interact with others and share certain content and information on social media platforms) or utilize third-party provided platforms to publish or manage the Services or portions thereof. Through these platforms and features, we receive or may share information about you, and

this Privacy Policy applies to that information as well. In addition, some providers of third-party social media or blogging platforms we utilize have their own privacy policies which explain how the third parties that provide them may collect, use and protect your information (e.g., if you establish an account with such platform providers directly). By using social features, you agree to those third parties' privacy policies and terms of use.

If you choose to communicate with us or another user through social features available on our websites or mobile applications or through our social media pages, or other similar communication or messaging features or services, such information may be made publicly available. **For security purposes, please do not include any password, social security number, payment card or other sensitive information via these features.** We have the right, but not the obligation to monitor messages and communications between and among users for security and training purposes. We may, but are not obligated to, remove any content we deem inappropriate.

7. LEGAL BASIS FOR PROCESSING DATA

In this section, we identify the legal grounds on which we rely to process personal information.

In some cases, we have a legitimate interest to process the personal information that we collect, such as to develop, administer and support our products and services; to operate, evaluate and improve our business; to facilitate and manage engagement programs; to promote research; to support our recruitment activities; to facilitate a Corporate Transaction (including a sale of assets or merger or acquisition); or to fulfill our contracts with business partners, such as third parties that distribute our products.

It may also be necessary for us to process personal information to establish, exercise or defend against fraud, illegal activity, and claims and other liabilities, including by enforcing the terms and conditions that govern the services we provide.

We may also process personal information as specifically permitted by applicable legal requirements.

If we rely on consent for the processing of your personal information, we will seek such consent at the time we collect your personal information.

8. DATA RETENTION

We retain personal data used for defense purposes for a maximum of ten (10) years from your most recent interaction with the app, or from the expiration of your subscription. If you access the app after your subscription has expired, the retention period starts from this most recent interaction. Specific legal obligations might require different retention periods and, in such cases, those different periods will apply. Upon the expiry of the retention period, the data is either deleted or anonymized.

We retain personal data used for the purpose of compliance with legal obligations for a maximum of five (5) years from your most recent interaction with the app, or from the expiration of your subscription. If you access the app after your subscription has expired, the retention period starts from this most recent interaction. Specific legal obligations might require different retention periods and, in such cases, those different periods will apply. Upon the expiry of the retention period, the data is either deleted or anonymized.

We retain the personal data for a maximum of three (3) years from your most recent interaction with the app, or from the expiration of your subscription. If you access the app after your subscription has expired, the retention period starts from this most recent interaction. After this period, unless any legal obligations require that the data is retained for longer, the data is either deleted or anonymized.

9. YOUR CHOICES AND RIGHTS

You have the following rights in relation to how we use your personal information:

- **Access**: you may request access to your personal information and receive copies of it;

- **Correction**: you may have inaccurate/incomplete personal information corrected and updated;

- **Object to, or Limit or Restrict, Use of Data**: you can ask us to stop using all or some of your personal information or to limit our use of it;

- **Deletion**: in certain circumstances, you can request a right "to be forgotten" (this is a right to have your information deleted or our use of your data restricted). We will honor such requests unless we have to retain this information to comply with a legal obligation or unless we have an overriding interest to retain it;

- **Portability**: in certain circumstances, exercise the right to data portability (this is a right to obtain a transferable version of your personal information to transfer to another provider); and

- **Consent Management**: where we rely on consent to process your personal data, you may withdraw consent at any time. You do not have to provide a reason for your withdrawal where processing is based on consent.

For your protection, we may require proof of identity and verification before we can answer your requests.

You also have the right to complain before the competent national data protection authority, or any other applicable regulator in the jurisdiction where you reside, in the event that you think we've violated the applicable privacy laws and we haven't addressed your request

10. INTERNATIONAL DATA TRANSFERS

We may transfer your personal information to countries other than the country in which the data was originally collected for the purposes described in this Privacy Notice. For example, if you are located outside of the United States, we may transfer your personal information to the United States. The countries to which we transfer personal information may not have the same data protection laws as the country in which you initially provided the information. When we transfer personal information across borders, we consider a variety of requirements that may apply to such transfers.

Specifically, we may transfer personal information from the European Economic Area to:

- Countries that the European Commissions has deemed to adequately safeguard personal information,

- Pursuant to the recipient's compliance with standard contractual clauses (also known as Model Clauses), or Binding Corporate Rules,

- Pursuant to the consent of the individual to whom the personal information pertains, or

- As otherwise permitted by applicable EEA requirements.

11. INFORMATION FOR RESIDENTS OF CALIFORNIA: YOUR CALIFORNIA PRIVACY RIGHTS

If you are a California resident, the California Consumer Privacy Act ("CCPA") may provide you with rights that are in addition to those set forth elsewhere in this Privacy Policy regarding our use of your personal information. The CCPA Notice applies to "Consumers" as defined by the law. This section describes your CCPA rights as a California Consumer and explains how to exercise those rights. See Sections 1 - 4 above to learn what information we collected from you and how it is collected, used and shared.

No more than twice in a twelve-month period, you may request the right to know what personal information we have collected about you, including the categories of personal information, specific pieces of personal information, categories of sources from which we collected your personal information, business or commercial purposes for our collection or sale of your personal information, and categories of third parties to whom we've disclosed your personal information.

Data Correction Rights

You may request to have inaccurate personal information corrected and updated.

Data Deletion Rights

Except to the extent we have a basis for retention under CCPA, you may request that we delete your personal information that we have collected directly from you and are maintaining. Note also that we are not required to delete your personal information that we did not collect directly from you.

Exercising Your Rights

To make a request for access, correction, or deletion according to your rights under CCPA, send your request to privacy@bendingspoons.com. Consumers may exercise these rights via an authorized agent. We cannot respond to your request or provide you with personal information if we cannot verify your identity or authority to make the request and confirm that the personal information relates to you. Any request you submit to us is subject to an identification and residency verification process ("Verifiable Consumer Request").

The Verifiable Consumer Request must provide sufficient information that allows us to reasonably verify you are the person about whom we collected personal information or an authorized representative; and describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

Some personal information we maintain about Consumers is not sufficiently associated with enough personal information about the Consumer for us to be able to verify that it is a particular Consumer's personal information (e.g., clickstream data tied only to a pseudonymous browser ID). In accordance with the CCPA, we do not include that personal information in response to Verifiable Consumer Requests. If we cannot comply with a request, we will explain the reasons in our response.

We will make commercially reasonable efforts to identify Consumer personal information that we collect, process, store, disclose, and otherwise use and to respond to your California Consumer privacy rights requests. We will typically not charge a fee to fully respond to your requests, but we may charge a reasonable fee, or refuse to act upon a request, if your request is excessive, repetitive, unfounded, or overly burdensome.

Opt-Out

To make a request to opt-out of sale under CCPA, email privacy@bendingspoons.com. See Section 13: Online Privacy Choices and Rights to learn how you can exercise your rights regarding interest-based advertising.

We will not discriminate against you in a manner prohibited by the CCPA because you exercise your CCPA rights. However, we may charge a different price or rate, or offer a different level or quality of good or service, to the extent that doing so is reasonably related to the value of the applicable data. In addition, we may offer you financial incentives for the collection, sale and retention and use of your personal information as permitted by the CCPA that can, without limitation, result in reasonably different prices, rates, or quality levels. The material aspects of any financial incentive will be explained and described in its program terms. We may add or change

incentive programs and/or their terms by posting notice on the program descriptions and terms linked to above so check them regularly.

California's "Shine the Light" law, Civil Code section 1798.83, requires certain businesses to respond to requests from California customers asking about the businesses' practices related to disclosing personal information to third parties for the third parties' direct marketing purposes. Alternately, such businesses may have in place a policy not to disclose personal information of customers to third parties for the third parties' direct marketing purposes if the customer has exercised an option to opt-out of such information-sharing. As discussed above, if we share Personal Information with third parties for their marketing purposes you will be able to elect for us not to do so by submitting your request to privacy@bendingspoons.com (please include your name, mailing address, and email address).

12. INFORMATION FOR RESIDENTS OF MAINLAND CHINA

If you are a resident of Mainland China ("Mainland China", for the purpose of this Privacy Policy, excluding the Hong Kong Special Administrative Region and the Macau Special Administrative Region, and Taiwan), the PRC laws and regulations contain rules that are in addition to those set forth elsewhere in this Privacy Policy regarding our collection, use, transfer and retention of your personal information.

Principles of Collection

We only collect your information to the extent necessary to provide one or more of the Services, and will do so only by fair and reasonable means. The legal basis for collecting and using the information depends on what the information is and the context in which we collect it. During your use of some features, we will collect your personal information after obtaining your consent. Unless the provision of such information is required by applicable laws and regulations, refusing to provide such information will only result in your inability to use the related features, and will not affect your use of other features.

Sensitive Personal Information

Access to sensitive personal information, such as contacts, exact location, camera, microphone and album, is disabled by default, and will only be enabled upon your express authorization. It is important to note that obtaining your authorization to access sensitive personal information is a necessary but not sufficient condition for us to collect certain information. Our acquisition of your authorization to access sensitive personal information does not mean that we will definitely collect your relevant information. We will only collect your sensitive personal information when there is a specified purpose and sufficient necessity and in accordance with this Privacy Policy. For the collection and processing of sensitive personal information, specific consent shall be obtained from you.

We place great value on the protection of minors' personal information. As required by applicable laws and regulations, any user under the age of 14 shall obtain the written consent of his/her parent or statutory guardian prior to providing sensitive personal information to us.

Information Shared with a Third Party

We will share your personal information with third parties only in accordance with this Privacy Policy. Unless explicitly authorized by you, we will not share any information that can be used to identify your identity (such as your name or email address). We may, however, share non-personally identifiable, aggregated, and/or public information with third parties. We will direct all such third-party service providers to maintain the confidentiality of the information disclosed to them and not to use your information for any purpose other than that have been authorized by you.

We may retain your personal information for the longer of three (3) years after we become aware that you have ceased using our services or for so long as necessary to fulfill any contractual obligation governing the information or our legal and regulatory obligations. However, we may not know if you have stopped using our services, so we encourage you to contact us at the appropriate support email in the "How to Contact Us" section of this Privacy Policy if you are no longer using the services. We may retain other information that is not personally identifiable for backups, archiving, prevention of fraud and abuse, analytics, or where we otherwise reasonably believe that we have a legitimate reason to do so.

Upon the expiry of the retention period, unless any legal obligations require that personal information is retained for longer, the data is either deleted or anonymized.

If we discontinue providing our Services, we will notify you of such change by sending a notification, posting an announcement, or other means, and delete or anonymize your personal information within a reasonable period. “Anonymization” refers to the irreversible erasure or removal of sensitive personal information that leads to the information owner being identified. Any anonymized information shall not be considered as personal information.

Your personal information collected from Mainland China will be stored in a location within Mainland China in accordance with applicable laws and regulations. If it is necessary to change the location where your personal information is stored from Mainland China to another location outside Mainland China, the information transfer will be conducted in strict compliance with applicable laws.

Right to Delete Information

We will delete, and you have the right to request the deletion of, your personal information if the purpose of processing such personal information has been achieved or is unable to be achieved, or the personal information is no longer necessary for achieving such purpose, we cease the provision of the Service, or the required information retention period has expired, relevant authorization or consent is withdrawn by you, the processing of personal information by us is in violation of any applicable law, regulations or agreement, or any other circumstances as provided by applicable laws or regulations.

If the information retention period prescribed by law has not expired, or it is technically difficult to delete the personal information, we will cease the processing of such personal information, except for storage and any necessary measure taken to protect your personal information.

13. ONLINE PRIVACY CHOICES AND RIGHTS

Device permissions

Mobile platforms have permission systems for specific types of device data and notifications, such as camera and microphone as well as push notifications. Where applicable, you can change your settings on your device to either consent or oppose the collection of the corresponding information or the display of the corresponding notifications. Of course, if you do that, certain services may lose full functionality.

Uninstall

You can stop all information collection by the app by disabling call forwarding and deactivating your account by following the instructions on the Service's Settings screen and then uninstalling the app using the standard uninstall process for your device. If you uninstall the app from your mobile device, the unique identifier associated

with your device will continue to be stored. If you re-install the application on the same mobile device, we will be able to re-associate this identifier to your previous transactions and activities.

Email

If you receive commercial email from us, you may unsubscribe at any time by following the instructions contained within the email. You may also opt-out from receiving commercial email from us, and any other promotional communications that we may send to you from time to time, by sending a request to privacy@bendingspoons.com. Please be aware that if you opt-out of receiving commercial email from us or otherwise modify the nature or frequency of promotional communications you receive from us, it may take up to ten business days for us to process your request, and you may receive promotional communications from us that you have opted-out from during that period. Additionally, even after you opt-out from receiving commercial messages from us, you will continue to receive transactional or administrative messages from us regarding the Services.

Location information

If you choose to opt-in, some of our apps may collect your device's precise real-time location, and in such cases, you may be able to opt out from further allowing us to have access to such location data by managing your location preferences in the app and/or on your device.

Notice to Nevada users

We do not sell covered information, as defined under Chapter 603A of the Nevada Revised Statutes, and we do not have plans to sell this information. However, if you would like to be notified if we decide in the future to sell personal information covered by the Act, please contact us at privacy@bendingspoons.com. You are responsible for updating any change in your email address by the same method and we are not obligated to cross-reference other emails you may have otherwise provided us for other purposes. We will maintain this information and contact you if our practices change.

New Privacy Laws

We understand that privacy laws are constantly evolving. New US state laws and new international privacy laws are consistently emerging, developing and being enacted. We will respect all applicable privacy laws.

Advertising Opt-Outs

You may choose whether to receive some Interest-based Advertising by submitting opt-outs. Some of the advertisers and Service Providers that perform advertising-related services for us and third parties may participate in the Digital Advertising Alliance's ("DAA") Self-Regulatory Program for Online Behavioral Advertising. To learn more about how you can exercise certain choices regarding Interest-based Advertising, including use of Cross-device Data for serving ads, visit **http://www.aboutads.info/choices/**, and **http://www.aboutads.info/appchoices** for information on the DAA's opt-out program specifically for mobile apps (including use of precise location for third party ads). Some of these companies may also be members of the Network Advertising Initiative ("NAI"). To learn more about the NAI and your opt-out options for their members, see **http://www.networkadvertising.org/choices/**. Please be aware that, even if you are able to opt out of certain kinds of Interest-based Advertising, you may continue to receive other types of ads. Opting out only means that those selected members should no longer deliver certain Interest-based Advertising to you but does not mean you will no longer receive any targeted content and/or ads (e.g., from other ad networks). Also, if your browsers are configured to reject cookies when you visit these opt-out webpages, or you subsequently erase your cookies, use a different device or web browser or use a non-browser-based method of access (e.g., mobile app), your NAI / DAA browser-based opt-out may not, or may no longer, be effective.

When you allow Notifications, we may send you offers and promotions related to our products and features. You may opt out of these through the Settings menu on your device.

14. HOW WE PROTECT PERSONAL INFORMATION

We use various efforts intended to safeguard the security and integrity of personal information collected through our Services. Despite these measures, however, we cannot and do not guarantee that information will be absolutely safe from interception or intrusion during transmission or while stored on our system, or otherwise, and you provide information to us at your own risk.

If you correspond with us by email or using Web forms like a "contact us" feature available through our Services, you should be aware that your transmission might not be secure from access by unauthorized parties. We have no liability for disclosure of your information due to errors or unauthorized acts of third parties during or after transmission. If you create an **account** as part of using our Services, you are responsible for maintaining the confidentiality of your account password and for any activity that occurs under your account. Please notify us of any unauthorized use of your password or account.

If we believe that the security of your personal information in our care may have been compromised, we may seek to notify you. If we have your email address, we may notify you by email to the most recent email address you have provided us in your account profile. Please keep your email address in your account up to date. You can change that email address anytime in your account profile. If you receive a notice from us, you can print it to retain a copy of it. To receive these notices, you must check your email account using your computer or mobile device and email application software. We may also post a conspicuous notice on our site or notify you through the mobile application.

15. LINKS TO WEBSITES AND THIRD-PARTY CONTENT

For your convenience and information, we may provide links to websites and other third-party content that is not owned or operated by us. The websites and third-party content to which we link may have separate privacy notices or policies. We are not responsible for the privacy practices of any entity that we do not own or control. We encourage you to review the privacy policies of such third parties before providing them with any personal information.

16. INFORMATION RELATING TO CHILDREN

We do not knowingly collect information from children under the age of 13 (or 16 in the EEA, or older if required in an applicable jurisdiction to comply with applicable laws). If you are not over 13 years of age (or 16 in the EEA, or older if required in an applicable jurisdiction to comply with applicable laws) then **DO NOT DOWNLOAD OR USE THE SERVICES.** If you are a parent or legal guardian and believe that we may have personal information from or about your child under 13, please contact us at privacy@bendingspoons.com. Note that we'll attempt to delete the account of any child under the age of 13 that's reported to us as soon as possible. You are responsible for any and all account activity conducted by a minor on your account.

17. UPDATES TO OUR PRIVACY POLICY

We reserve the right to update this Privacy Policy to reflect changes in our practices and services. When we post changes to this Privacy Policy, we will update the date of this Privacy Policy. Continued use of the Services after such date constitutes acceptance of such updates. When required by applicable law, we may inform you by additional means, such as through a notification on the website or in our mobile applications if we make material changes to how your personal information is collected, accessed or otherwise used as a result of your use of the Services or if your rights under this Privacy Policy are materially impacted by changes to our privacy practices. We recommend that you check this page from time to time to inform yourself of any changes in this Privacy Policy.

18. HOW TO CONTACT US

If you want to submit a request by email or if you have any other questions about privacy or data protection at Bending Spoons, you can contact us by sending an email to privacy@bendingspoons.com.

Can't find what you're looking for?
Visit **the Support Center**.

BENDING SPOONS

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Maybe.

Bending Spoons Operations S.p.A.

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Milan office
Via Nino Bonnet 10, 20154, Milan, Italy

London office
Fora The Jellicoe, 5 Beaconsfield St, London N1C 4EW, UK